

#	Case Name	Tentative
50.	Donovan v. Taft 2021-01225158	Attorneys Gina M. Austin/Tamara Rozmus of Austin Legal Group's motion to be relieved as counsel of record for defendant Robert Taft is DENIED without prejudice. An attorney seeking to be relieved must use Judicial Council forms when seeking court approval for withdrawal. California Rules of Court, Rule 3.1362 specifically require that "[t]he motion to be relieved as counsel must be accompanied by a declaration on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel--Civil (form MC-052)." Ca. Rules of Court, Rule 3.1362. Although the moving attorneys may have good cause for the requested relief, the Mandatory Judicial Council form was not utilized. As such, the court has no choice but to deny the motion without prejudice. Attorney Gina Austin shall give notice of this ruling.
51.	Valvano v. Hurtado 2025-01515962	The motion of attorney Victoria E. Edwards to be relieved as counsel of record for defendant Jeffrey B. Moreno is DENIED without prejudice. The motion and declaration are not signed by attorney Edwards. As a result, there is no evidence in support of the motion. In the event counsel seeks to refile this motion, counsel should also expressly address the status of the law firm of Adams & Reese, LLP and any other attorneys from that firm, in the event they also seek to be relieved as counsel. Moving attorney shall give notice of this ruling.
52.	J.C. v. Marriott International, Inc. 2025-01530620	Defendant Marriott International, Inc. erroneously sued and served as Anaheim Marriott Hotel's demurrer to the Complaint is OVERRULED. A motion to strike (not a demurrer), is the proper vehicle to challenge an allegedly improper remedy. (<i>Kong v. City of Hawaiian Gardens Redevelopment Agency</i> (2002) 108 Cal.App.4th 1028, 1047 ["a demurrer cannot rightfully be sustained ... to a particular type of damage or remedy"]; <i>PH II, Inc. v. Superior Court</i> (1995) 33 Cal.App.4th 1680, 1682 ["demurrer does not lie to a portion of a cause of action"].) Defendant's motion to strike punitive damages allegations is GRANTED, with leave to amend. (Code Civ. Proc., §§ 435, 436 [authorizing motion]; Civ. Code., § 3294 [authorizing

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		punitive damages]; <i>Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority</i> (2022) 83 Cal.App.5th 1137, 1193 [specific factual allegations required for punitive damages].) The Complaint does not allege sufficient facts, as opposed to conclusions, showing "despicable" conduct (<i>Lackner v. North</i> (2006) 135 Cal.App.4th 1188, 1210), or entity liability (Civ. Code., § 3294, subd. (b); <i>Cruz v. HomeBase</i> (2000) 83 Cal. App. 4th 160, 167.) The Complaint alleges that defendants knew the firepit was defective, and did not heed warning labels on the bioethanol fuel, but there are no facts alleged, as opposed to conclusions, showing that defendants, and/or any officer, director, or managing agent, knew or should have known of the potentially dangerous or extreme consequences of using bioethanol fuel outside of a ventless fireplace. (Complaint, ¶¶ 4-6, 28, 31, 41-44.) Accordingly, the court orders the following allegations stricken: 1. Page 1, lines 7-9, which reads: "...the defendants engaged in conduct with a conscious disregard for the rights of Plaintiff and intended to cause harm." 2. Page 6, line 14-15, which reads: "...its employees acted in conscious and reckless disregard for guest safety..." 3. Page 7, line 13, which reads: "Defendants acted in conscious disregard of the safety of each Plaintiff..." 4. Pages 8-9, Allegations Supporting Punitive Damages, in its entirety; 5. Page 10, Prayer for Relief number three in its entirety, which reads: "For punitive damages under Civil Code § 3294." Plaintiffs are granted 15 days' leave to amend. The case management conference is continued to November 2, 2026 at 9:00 a.m. in Department C28. The order to show cause is discharged. Moving party shall give notice of this ruling.
53.	Logan & Logan Construction, Inc. v. RRCZ Investments LLC	Defendants Stacie Andrella and Kathleen Hollins' demurrer to Plaintiff Logan & Logan Construction, Inc.'s First Amended Complaint ("FAC") is SUSTAINED as to the Fourth Cause of Action for Fraud – False Promise as to Defendant Kathleen Hollins only. The demurrer is otherwise OVERRULED. Within 10 days of this ruling, Plaintiff may file a Second Amended Complaint to address the deficiency in the Fourth Cause of Action, as it pertains to Defendant Hollins. If a

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	2024-01430488	Second Amended Complaint is not filed within 10 days of this ruling, Defendants shall file an answer to the First Amended Complaint within 30 days of this ruling. Plaintiff's Request for Judicial Notice is DENIED. The Court's prior rulings are not relevant to the issues raised in Defendants' demurrer and motion to strike. While Plaintiff's Opposition is untimely, Defendants have addressed it on the merits. The Court will exercise its discretion and consider the late-filed Opposition. All counsel are admonished that there is no certainty that the Court will exercise its discretion in a similar manner in the future should parties fail to comply with deadlines. <u>General Standards Related to Demurrers</u> In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) Questions of fact cannot be decided on demurrer. (<i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) <u>Defendants' Special Demurrer for Uncertainty</u> Demurrers for uncertainty are disfavored. The Court will only sustain a demurrer for uncertainty if it is so poorly drafted that a defendant cannot reasonably respond. <i>Khoury v. Maly's of California Inc.</i> (1993) 14 Cal.App.4th 612, 616. Any claimed uncertainties created by the complaint must be specified in the demurrer and specify where such uncertainty appears by page and line numbers of the complaint. <i>Fenton v. Groveland Comm. Services Dist.</i> (1982) 135 Cal.App.3d 797, 765. Demurring Defendants fail to specify by page and line number which contradicting allegations render the complaint so confusing as to render it incapable of being answered. Defendants' demurrer is premised on the assertion that the FAC relies upon insufficient allegations of alter ego liability.